

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Zafar Ahmed

Civil Revision No. 923 of 2019

Md. Mosharaf Hossain and others

Defendant-appellant-petitioners

-Versus-

Rowshan Ara Begum and others

Plaintiff-opposite parties

Mr. Md. Omar Farook, Advocate

...For the petitioners

Mr. Sk. Md. Morshed, Senior Advocate

... For the opposite party Nos. 1, 3 and 4

Heard on: 31.10.2024, 06.11.2024, 20.11.2024 and
27.11.2024

Judgment on: 15.12.2024

The instant revision has been argued with great ability by the learned Advocates of both sides. As a result of their arguments on question of facts and law, the issue involved in the Rule has been narrowed down to a very short compass as to the admissibility of documentary evidence.

The learned Assistant Judge, Mirsharai Sadar, Chattogram allowed the Other Suit No. 49 of 2005 on 28.03.2010. Decree was

drawn on 01.04.2010. Other Appeal No. 97 of 2017 (former 201 of 2010) was dismissed on 18.10.2018 by the Special District Judge, Chattogram. Challenging the same, the defendants filed the instant revision and obtained Rule on 08.04.2019.

Plaintiff-opposite party Nos. 1, 3 and 4 entered appearance in the Rule.

The plaint was amended two times before commencement of the trial. The plaintiffs filed the suit for declaration of title and confirmation of possession in 15 decimals of land recorded in R.S Khatian No. 3241, R.S Plot No. 5239 corresponding to B.S Khatian No. 1125, B.S Plot Nos. 5919 and 5920. The plaintiffs further prayed for declaration that the registered sale deed Nos. 2229 dated 03.05.1960, 2508 dated 04.04.1987 and 116, 117 both dated 11.02.2005 and Mutation Case No. 54/88-89 are illegal and not binding upon the plaintiffs. The plaintiffs also prayed for a permanent injunction.

The plaintiffs' case is that Abdul Kader was the owner of 22.5 decimals of land recorded in R.S. Plot No. 5239. By a registered deed of gift No. 2329 dated 01.06.1946 (**ext. 3**), he gifted the said 22.5 decimals of lands and other lands to his two daughters, namely Rowshan Banu and Hosne Banu in equal share. Rowshan Banu died leaving a daughter and a son who inherited her share in the lands. By

a registered sale deed No. 3371 dated 27.04.1974 (**ext. 5**), the heirs of Rowshan Banu sold the suit land consisting of 15 decimals, which was recorded in R.S. Plot No. 5239, to Abul Hossain. Hosne Banu by a registered sale deed No. 3083 dated 11.06.1974 (**ext. 4**) sold lands including the land recorded in the R.S Khatian No. 5239 to Abul Hossain. Thus, Abul Hossain became the owner of the lands including the suit land. The plaintiffs purchased the suit land from Abul Hossain by a registered deed No. 1698 dated 07.05.1987 (**ext. 7**). Precisely, this is the chain of title of the plaintiffs.

The contesting defendants admitted that Abdul Kader was the owner of 22.5 decimals of land. They denied the execution of the gift deed dated 01.06.1946 (**ext. 3**) by Abdul Kader and subsequent execution of the sale deed dated 11.06.1974 (**ext. 4**) and another sale deed dated 07.05.1987 (**ext. 7**). Their specific case is that Abdul Kader kept the said 22.5 decimals of land in mortgage to one Munshi Mia in 1956. Munshi Mia was in possession of the land till 1960 as mortgagee. Abdul Kader could not redeem the mortgage. He was in need of money. Thereafter, by a registered sale deed No. 2229 dated 03.05.1960 (**ext. Kha**) Abdul Kader sold $15\frac{3}{4}$ decimals of land out of 22.5 decimals to Munshi Mia's wife Ayesha Khatun. Thereafter, Ayesha Khatun sold the said $15\frac{3}{4}$ decimals of land (suit land) to defendant Nos. 1 and 2 and to their brother Moazzem (since

deceased). After purchase, they mutated the land in their names, vide Mutation Case No. 54/88-89. Thereafter, the defendants sold part of the suit land to other defendants.

As noted earlier, the suit was decreed in favour of the plaintiff by the trial Court and the appellate Court below. Mr. Md. Omar Farook, the learned Advocate appearing for the defendant-petitioners, submits that the foundation of the chain of title of the plaintiffs is the registered gift deed dated 01.06.1946 (ext. 3). At the time of tendering the certified copy of the said gift deed in evidence by the PW-1 the defendants raised objection which is noted in the deposition sheet as well as on the back page of exhibit-3. As such, the gift deed (ext. 3) was inadmissible evidence as per provisions of the Evidence Act. However, both the Courts below did not consider this aspect of the case and decreed the suit treating exhibit-3 as admissible evidence.

The next argument of Mr. Omar Farook is that the plaintiffs failed to prove their possession in the suit land. On question of possession, the trial Court relied on the oral evidence of the PWs and disbelieved the testimony of DWs and held that the plaintiffs are in possession of the suit land. The appellate Court below came to the same conclusion. Mr. Farook argued that both the Courts below did not at all consider the B.S. Khatian, rent receipts, mutation case proceedings tendered in evidence by the defendants in support of

proof of possession of the suit land by them. The final argument of Mr. Farook is that the suit is barred by limitation.

In reply, Mr. Sk. Md. Morshed, the learned Senior Advocate appearing for the plaintiff-opposite parties, submits that the defendants in their pleading did not deny the execution of the registered gift deed dated 01.06.1946 (ext. 3). As such, as per provision of Order VIII rule 5 of the Code of Civil Procedure (CPC) read with Section 58 and clause (b) of Section 65 of the Evidence Act, the certified copy of exhibit-3 is admissible evidence. On question of possession and limitation, Mr. Morshed submits that both the Courts below concurrently found that the plaintiffs are in possession of the suit land and that the suit is not barred by limitation.

The point raised by Mr. Farook that exhibit-3, which is the certified copy of the registered gift deed dated 01.06.1946 tendered in evidence by PW-1, is inadmissible is taken up first.

Exhibit-3 is the foundation of the plaintiffs' case. It is noted that the defendants also raised objection as to admissibility of certified copies of sale deed dated 27.04.1974 (**ext. 5**) and sale deed dated 07.05.1987 (**ext. 7**) in evidence which also form part of the chain of title of the plaintiffs. The objections are recorded in the deposition sheet as well as on the back page of the exhibited documents.

The contents of documents may be proved either by primary or by secondary evidence (Section 61 of Evidence Act). Section 62 provides that primary evidence means the document itself produced for the inspection of the Court. Under clause (1) of Section 63 certified copies given under the provisions of Section 65 are included as secondary evidence. Section 64 states that documents must be proved by primary evidence except in the cases mentioned in other provisions of the Evidence Act. Cases in which secondary evidence relating to documents may be given are set out in Section 65. The relevant provisions of Section 65 are reproduced below,

“65. Secondary evidence may be given of the existence, condition or contents of a document in the following cases:—

(a)

(b) when the existence, condition or contents of the original have been proved to be admitted in writing by the person against whom it is proved or by his representative in interest;

(c)

(d)

(e) when the original is a public document within the meaning of section 74;

(f)

(g)

In cases (a), (c), and (d).....

In case (b), the written admission is admissible.

In case (e) or (f), a certified copy of the document, but no other kind of secondary evidence, is admissible.

In case (g).....”.

When a certified copy of a document is tendered in evidence the same is subject to a large number of limitations. In *H. Siddiqui vs. A. Ramalingam*, (2011) 4 SCC 240 it is held:

“The provisions of Section 65 of the 1872 Act provide for permitting the parties to adduce secondary evidence. However, such a course is subject to a large number of limitations. In a case where the original documents are not produced at any time, nor has any factual foundation been laid for giving secondary evidence, it is not permissible for the court to allow a party to adduce secondary evidence. Thus, secondary evidence relating to the contents of a document is inadmissible, until the non-production of the original is accounted for, so as to bring it within one or other of the cases provided for in the section. The secondary evidence must be authenticated by foundational evidence that the alleged copy is in fact a true copy of the original. Mere admission of a document in evidence does not amount to its proof. Therefore, the documentary evidence is required to be proved in accordance with law. The court has an obligation to decide the question of admissibility of a document in secondary evidence before making endorsement thereon”.

In the above-mentioned reported case, the photocopy of the power of attorney was shown to the respondent in his cross-examination and he admitted his signature. The Indian Supreme Court held that the respondent had merely admitted his signature on the photocopy of the power of attorney and did not admit the contents

thereof. Admissibility of a document or contents thereof may not necessarily lead to drawing any inference unless the contents thereof have some probative value.

In *Abani Mohan Sana vs Assistant Custodian Vested Property, Chandpur and others*, 39 DLR (AD) 223 the plaintiff's case was based on a registered gift deed. He tendered in evidence the certified copy of the said deed as exhibit-1. In cross-examination, the plaintiff deposed that the original gift deed was burnt. He admitted that his house was not burnt. P.W.2, who was the scribe, was the only other witness who stated that the executants signed the deed after it was written by him. The Apex Court observed that the evidence of P.W.2 cannot by itself prove the genuineness of the gift deed. It was held by majority (4:1):

“In the present case the plaintiff is claiming his title to the suit land on the basis of a deed of gift. I have got no doubt in my mind that the initial onus was on him to prove his title. The observation made in 32 DLR (AD) 29 would be of no avail to the appellant, as he failed to discharge his initial onus by proving his document of title. Had he succeeded to do so then the onus would have shifted on the Enemy Property Authority to prove that the executants of the plaintiff's document, the sons of Surendra Mohan Saha, were residing in an enemy country at the relevant time”.

Under Section 79 of the Evidence Act, a Court is bound to draw the presumption that a certified copy of a document is genuine and

also that the concerned officer signed it in the official character which he claimed in the said document. But such a presumption is permissible only if the certified copy is substantially in the form and purported to be executed in the manner provided by law in that manner. In other words, if the certified copy is executed substantially in the form and in the manner provided by the law, the Court raises a rebuttable presumption in regard to its genuineness. The scope of Section 79 was considered in *Bhinka and others vs. Charan Singh*, AIR 1959 SC 960. In this case, three Courts rejected the certified copy of the record-of-rights on the ground that it was not genuine on the basis of not only the internal evidence furnished by the document but also on other evidence. In this case, neither the official diary of the Patwary, who was the authorised officer to issue certified copies of the record-of-rights, was produced before the Court to prove that the prescribed procedure was followed nor the extract noted in the diary to disclose that the Patwary made any note of payment as required by law. The Indian Supreme Court held that it cannot, therefore, be said that the certified copy was issued by the Patwary in substantial compliance with the provisions of law governing such issue. It follows that the Court is not bound to draw the presumption in regard to its genuineness. It was further held that even if there was any rebuttable presumption, it was so rebutted.

In the instant case, the plaintiffs neither called the concerned officer who issued the certified copies of exhibit Nos. 3, 5 and 7 nor took steps to prove that those exhibits are substantially in the form and purported to be executed in the manner directed by law in that behalf. Without taking such steps, the Court is not bound to draw the presumption of genuineness of exhibit Nos. 3, 5 and 7 under Section 79 of the Evidence Act when the other side raised objection as to their admissibility at the time of tendering those in evidence.

In *Sova Rani Guha alias Sova Rani Gupta vs. Abdul Awal Mia and others*, 47 DLR (AD) 45, the certified copy of the kabala was exhibited without any objection. An explanation was given for non-production of the original kabala. It was held:

“A registered sale deed is the primary evidence of the interest sold. Under Section 74(2) of the Evidence Act, 1882 public record of a private document like a sale deed when kept in the office of the Sub-Registrar to which the public generally have access falls within the category of public document and a certified copy of such a document can be adduced as a secondary evidence, though the reception of such evidence will be of a weak character in place of the registered document evidencing the sale.

Where a case for the reception of secondary evidence is made out under the provisions of Section 65, a certified copy of a registered document becomes admissible in proof of the existence, condition and contents of the original document under the provision of Section 57 (5) of the Registration Act,

but the contents of the documents may not be conclusive evidence.

The production of a certified copy of a sale deed does not, however, warrant the presumption of due execution of the original document. A party producing secondary evidence of a document is not relieved of the duty of proving the execution of the original. Even in a case where a document is exhibited without objection the Court is to be satisfied as to the execution of the document”.

In *Dr. Md. Forman Ali Miah vs. Nizamuddin*, 12 LM (AD) 138 no objection was raised at the time of proving exhibit-Kha by producing the certified copy. It was held that when the original is a public document under Section 74 of the Evidence Act and the original is a document of which a certified copy is permitted by the Act or by any other law in force in Bangladesh to be given in evidence the same may be given/filed in a Court and unless any objection is raised to such document when the same is filed it is very much admissible in evidence. 41 DLR (AD) 97 was followed and relied upon in *Dr. Md. Forman Ali Miah*.

The above case laws unequivocally suggest that when a party to the proceedings desires to prove a document, he can do so by producing the certified copy of the original document by laying the factual foundation for giving secondary evidence as per provisions of Section 65. Complication arises when the other side raises objection as to admissibility of the certified copy in evidence. Once objection is

raised the party adducing the secondary evidence has no option but to follow and satisfy the requirements of the Evidence Act for admissibility of such secondary evidence.

Against the backdrop of the factual matrix of the instant case, the proposition of law can be looked into from a different procedural perspective. Order XIII, rule 3 of the CPC empowers the trial Court to reject any document at any stage of the suit which it considers irrelevant or otherwise inadmissible even after admission of the document (*Kissen vs. Ram*, 12 WR 13). When a document is marked as exhibit without objection, the admissibility of the same cannot be challenged at appellate stage or subsequent stage [44 DLR (AD) 162, 12 LM (AD) 138, (2004) 7 SCC 107]. The rationale behind the principle is that objection as to the mode of proof falls within the procedural law. Therefore, such objections could be waived. The rule of fair play envisages that an objection, if taken at the appropriate point of time, would enable the party tendering the secondary evidence to cure the defect and resort to such mode of proof as would be regular. The omission to object becomes fatal because by his failure the party entitled to object allows the party tendering the secondary evidence to act on an assumption that the opposite party is not serious about the mode of proof [(2004) 7 SCC 107]. In the case in hand, in spite of objection raised by the defendants at the time of tendering exhibit Nos. 3, 5 and 7 in evidence by the plaintiffs, which

are certified copies of gift deed and sale deeds forming essential part of the chain of title of plaintiffs, they did not take steps to prove those documents in accordance with the procedure prescribed by law. Failure of the plaintiffs to prove documents (ext. 3, 5 and 7) in accordance with law in the face of objection goes to the root of the matter regarding admissibility. Regrettably, the trial Court admitted those exhibits in evidence and passed the decree based on those in violation of the law.

Mr. Morshed appearing for the plaintiff-opposite parties refers to exhibit-Ga series which are the attested copies of Union Parishad arbitration proceedings dated 11.01.1989 and exhibit-Gha and Gha (1) which are certified copies of Mutation Case No. 54/88-89 and mutation proposal case No. 23/88-89 giving rise to the mutation case and submits that transfer of the suit land by exhibit-3 had always been admitted by the defendants and as such exhibit-3 is not required to be proved under Section 58 (facts admitted need not be proved) and clause (b) of Section 65 of the Evidence Act. Exhibit-Ga series and exhibit-Gha and Gha (1) were tendered in evidence by the defendants. Exhibit-Ga series are the photocopies of handwritten documents attested by the Union Parishad Chairman pertaining to an award given in a local salish conducted by the local Union Parishad Chairman. The award has no legal force. The admissibility of exhibit-Ga series in evidence is highly questionable. In any event, it cannot be considered

as admission of the defendants as to the deed gift dated 01.04.1946 (ext. 3). The said gift deed has not been mentioned in exhibit-Gha (order dated 19.02.1989 passed by the Assistant Commissioner (Land) in Mutation Case No. 54/88-89). However, in exhibit-Gha(1) (report of the concerned Tahsildar dated 24.01.1989 in Mutation Proposal Case No. 23/88-89), the gift deed of 1946 (ext. 3) as well as the mortgage of the suit land in favour of Munshi Mia by Abdul Kader in 1956 and subsequent sale of the same to Munshi Mia's wife Ayesha Khatun by Abdul Kader which is the defendants' case, were mentioned. It is stated in exhibit-Gha(1), “আবুল হোসেন (predecessor-in-interest of plaintiffs) তাহার ভগ্নি হইতে খরিদ করিয়া দখল পাওয়ার জন্য মুন্সি মিঞার বিরুদ্ধে থানাতে এক মামলা দায়ের করিলে বাদি ও বিবাদির মনোনিত ব্যক্তিদেরকে সালিস ১১/৯/৭৯ তারিখে নিয়োগ করিলে উভয় পক্ষের কাগজপত্র দেখিয়া আব্দুল কাদেরের শঠতা দেখিয়া মুন্সি মিঞার দখল বহাল রাখেন”. The statements made in exhibit-Gha(1) negates the contention of Mr. Morshed.

Mr. Morshed argued that the defendants in their pleading did not categorically deny the plaintiffs' chain of title which is essentially linked to exhibit-3, rather admitted in paragraph 20 of the written statement that ফলে বাদীগণের কোনরূপ স্বত্ত্ব থাকিয়া থাকিলেও তাহা তামাদিতে বারিত হইয়া সকল স্বত্ত্ব বিলোপ হইয়াছে and as such, exhibit-3 is admissible evidence.

Mr. Farook, appearing for the defendant-petitioners, submits that the statement in question implies the alternative case of the

defendants that if there be any title of the plaintiffs the same has been barred by limitation. Mr. Farook submits that the statement does not tantamount to admission of the plaintiffs' case. Mr. Morshed, on the other hand, submits that the pleading of the defendants being evasive and not being specific in stating the real facts starting from paragraph 18 of the written statements, the plaintiffs' case is admitted by operation of law. In this regard, I note that the defendants in paragraph No. 11 of their written statement categorically denied the plaintiffs' chain of title including the gift deed dated 01.06.1946 (ext. 3) by stating, "...রৌশন বানু ও হোসনে বানুকে ১/৬/৪৬ ইংরেজী তারিখে ২৩২৯ নং দানপত্র মূলে অন্যান্য জমিসহ সর্বমোট ৭২ শতক সম্পত্তি দান করার কথা বা... ভোগ দখলে নিয়ত থাকার কথা বা স্থিত থাকার কথা সম্পূর্ণ মিথ্যা কাল্পনিক উদ্দেশ্য প্রণোদিত, বানোয়াট, অব্যঞ্জকতা পূর্ণ বটে যাহা এই বিবাদীগণ সরাসরি অস্বীকার করে".

Order VIII, rule 5 of the CPC states that every allegation of fact in the plaint, if not denied specifically or by necessary implication, or stated to be not admitted in the pleading of the defendant, shall be taken to be admitted except as against a person under disability. The case of *Zafela Begum and others vs. Atikulla and others*, 16 BLC (AD) 46 = 4 XP (AD) 2 can be referred to as an example as to how evasive denial in written statement can be considered as admission of the plaintiff's case. In paragraph 7 of the plaint of the reported case, the plaintiffs specifically stated that Money Execution Case Nos. 110 and 111 of 1952 were disposed of on compromise and sale of .07 acre

in plot No. 29 towards west was confirmed and the rest .57 acre was set aside, and the sale in respect of land in plot No. 27 was set aside. The defendants simply stated in paragraph 6(Kha) of their written statement that the sale was not set aside rather confirmed. The Apex Court held that the statements made in the written statement did not meet the positive claim of the plaintiffs on the point of setting aside the auction sale. It was further held that according to the law of pleadings, the defendant is bound to deal specifically each allegations of fact, the truth of which is not admitted. The written statement must not only deal with specifically, the defendant must also answer the point of substance. If his denial of fact is not specific but evasive, the said fact shall be taken to be admitted. In such event the admission itself being proof, no other proof is necessary.

Zafela Begum was followed and applied in ***Divisional Estate Officer, Bangladesh Railway and others vs. Jashimuddin and others***, 24 BLC (AD) 36 wherein it was held that the defendants having not denied in their pleading or in their oral evidence as to the plaintiffs' chronology of devolution of title and transfer made in their favour as stated in the plaint, the same is treated as admission under Order VIII rule 5 of the CPC. In the case in hand, the defendants, in my view, have specifically denied the foundation of the chain of title of the plaintiffs in written statement and set out their own case.

Therefore, I am unable to accept Mr. Morshed's contention on point of admission of the plaintiffs' case by the defendants in their pleading.

The relevant facts may be recalled. The plaintiffs' case is that Abdul Kader gifted 22.5 decimals of land to his two daughters on 01.06.1946 (ext. 3). The defendant's case is that Abdul Kader did not make such gift. He sold $15\frac{3}{4}$ decimals of land out of the said 22.5 decimals to Ayesha Khatun by a registered sale deed dated 03.05.1960 (ext. Kha). The defendants tendered the original sale deed dated 03.05.1960 in evidence. The trial Court did not disbelieve the defendants' chain of title based on exhibit-Kha. The Court observed that earlier transfer of the suit land made in 1946 (ext. 3) in favour of the predecessor-in-interest of the plaintiffs would prevail over the subsequent transfers made to the predecessor-in-interest of the defendants. The observation is based on the maxim "*qui prior est tempore potior est*" *jure* meaning "he who prior in time is better in law" incorporated in Section 48 of the Transfer of Property Act, 1882. I have already held that the certified copy of the gift deed dated 01.04.1946 (ext. 3) tendered in evidence by the plaintiffs is not admissible. Therefore, the very foundation of the plaintiffs' case is 'not proved'. The argument of Mr. Morshed to consider the probative value of exhibit-3 is rejected for the reason that the same is inadmissible evidence. Question of examining the probative value arises when a document is/or may be admissible which is not the

scenario in the instant case. Since the plaintiffs' case is not proved, I refrain from dwelling upon the question of possession and limitation argued by Mr. Omar Farook appearing for the defendants.

The defendants have successfully made out a case that exhibit Nos. 3, 5 and 7 tendered in evidence by the plaintiffs are inadmissible. Both the Courts below committed error of law resulting in an error in decreeing the suit causing failure of justice in treating the gift deed dated 01.04.1946 (ext. 3) and subsequent sale deeds dated 27.04.1974 and 07.05.1987 respectively (ext. 5 and 7) as admissible evidence which form a chain of title of the plaintiffs. Hence, the Rule succeeds.

In the Result, the Rule is made absolute. The judgments and decrees passed by the Courts below are set aside. The suit is dismissed.

Send down the L.C.R.